

*Cantrell, Green, Pekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 882.)

"[J]udicial notice could not properly be taken of the truth of the factual findings of the trial judge in" a prior case. (*Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1563.) "To state this a bit more simply, the taking of judicial notice that the judge believed A (i.e. that the judge ruled in favor of A on a particular factual dispute) is different from the taking of judicial notice that A's testimony must necessarily have been true simply because the judge believed A and not B." (*Sosinsky, supra*, 6 Cal.App.4th at p. 1565.)

The second protected activity Defendant identifies is her republication and redistribution of Defendant Le's articles that allegedly defamed Plaintiffs by referring to Plaintiff Nguyen as a criminal defendant, rather than a defendant in a civil lawsuit.

However, Defendant has presented no evidence establishing that the statements concerning Plaintiffs concern an issue of public interest.

For example, Defendant's Motion does not provide any evidence, or even make an argument, that the subject statements concerned a person or entity in the public eye, that the republication of Defendant Le's article could directly affect a large number of people beyond the direct participants, or that the topic of Defendant Le's article concerned a topic of widespread and/or public interest. (*Kieu Hoang v. Phong Minh Tran* (2021) 60 Cal.App.5th 513, 527.) Further, and contrary to the arguments made in the Reply, Paragraphs 6 and 7 of the Ngo Declaration do not support a finding that Plaintiffs are limited purpose public figures.

Similarly, Defendant's Motion provides no evidence, and makes no argument, that her republication of Defendant Le's article implicated the qualifications, competence and professional ethics of a professional. (*Yang v. Tenet Healthcare Inc.* (2020) 48 Cal.App.5th 939, 947.)

Instead, based on the allegations of the Complaint, the arguments raised in the Anti-SLAPP Motion, and the evidence presented in the Anti-SLAPP Motion, the Court finds Defendant Le's article, which Defendant republished, involves a private dispute, rather than one that implicates the public interest.

The allegations of the Complaint, and the evidence presented in Defendant's Motion, are reminiscent of the facts in *Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624. In *Woodhill*, the defendant, who had over a million social media followers, was unhappy with a birthday cake the plaintiff had made for defendant's son, as the chemistry-themed cake included pills that looked too realistic for defendant's liking. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 626-628.) As retribution for what he perceived as plaintiff's refusal to apologize and take responsibility for its error, the defendant posted disparaging statements about plaintiff on his social media account, and he described the incident on his podcast, which resulted in the plaintiff receiving threats from defendant's followers. (*Id.* at pp. 628-629.)

The *Woodhill* plaintiff filed suit, which included causes of action for libel, slander, and violation of the unfair competition law. The trial court denied the defendant's Anti-SLAPP motion, finding that none of defendant's challenged statements involved the public interest. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 629-630.) Even if the statements constituted protected activity, the trial court found plaintiff had shown a probability of prevailing on the merits. (*Id.* at p. 630.)

The Court of Appeal affirmed, concluding that the defendant's statements did not involve the public interest, as defined under section 425.16 of the Code of Civil Procedure. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 630.) First, the *Woodhill* court rejected the defendant's contention that his statements involved an issue of public interest because they were about the dangers of candy confusion, or children mistakenly eating pills they believed to be candy.

The *Woodhill* court explained that there must be some degree of closeness between the challenged statements and the asserted public interest, but a tangential relationship would not be enough. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 632.) The *Woodhill* court went on to hold that defendant's "statements did not seek public discussion of anything. They aimed to whip up a crowd for vengeful retribution. They were an unprotected effort 'to gather ammunition' in his spat with [plaintiff]. [Citation.]" (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 632-633.)

Next, the *Woodhill* court rejected defendant's claim that a public interest was implicated because both he and plaintiff were in the public eye. (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 633-634.) Relevant here, the court concluded that defendant could not rely on the fact he published his statements to many people, as a private dispute could not be transformed into a matter of public interest through wide communication to the public. (*Id.* at p. 633.) "Shouting makes the volume loud. It does not make the content worthy. [Citation.]" (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 633.)

Finally, the court held that the defendant's "quest for revenge did not give consumers information beyond his complaints about his one cake order. Consumers are interested in the reactions of other consumers, but a single report is the classic small sample, subject to the classic small sample error. [Defendant's] complaints about the decoration of a cake are not a public interest discussion." (*Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624, 634.)

Here, Defendants are accused of defaming Plaintiffs by referring to Plaintiff Nguyen as a criminal defendant, which has "affected Plaintiffs' reputation and hindered Plaintiffs' ability to fundraise for BPSOS." (Complaint, ¶¶ 26, 34, 44.) It is further alleged these defamatory statements have a tendency to expose "Plaintiffs to public contempt, ridicule, aversion, or disgrace, or to induce in the minds of a substantial number of members of the community an opinion of Plaintiffs as criminals," and they "tend to deter other people from associating or dealing with Plaintiffs, both personally and professionally." (Complaint, ¶¶ 32, 34, 42, 44.)